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DEMURRER AND

MOTION TO STRIKE

Demurrer and motion filed on October 22, 2025.

MOVING PARTY: Defendant Los Angeles Unified School District.

RESPONDING PARTY: Plaintiff A. Tigranyan, a minor, by and through his guardian

ad litem Anush Karapetyan.

NOTICE: OK.

RELIEF REQUESTED: Defendant demurs to the second, third, fifth, seventh,

eighth, ninth, and tenth causes of action. Defendant moves to strike portions

of the Complaint seeking statutory damages and attorney's fees under Civil Code

sections 52 and 54.3 and Education Code section 262.4.

RULING: Sustained in part.

BACKGROUND

On May 12, 2025, Plaintiff A. Tigranyan, a minor, by and through his guardian ad litem Anush Karapetyan, filed a Complaint against Defendants Los Angeles Unified School District, Institute for Applied Behavior Analysis, Elizabeth “Lizzie” Campbell, and Does 1 through 100.

On October 22, 2025, Defendant Los Angeles Unified School District filed a demurrer and a motion to strike. On June 8, 2026, Plaintiff filed oppositions to the demurrer and motion to strike. On June 15, 2026, Defendant filed replies in support of the demurrer and motion to strike.

LEGAL STANDARD

“[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court

does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp.

Dist. (1992) 2 Cal.4th 962, 967.)

A demurrer should be overruled if the complaint states facts

sufficient to constitute a cause of action "under any possible legal theory." (Aubry,

supra, 2 Cal.4th at p. 967.) Leave to amend must be allowed where there

is a reasonable possibility of successful amendment. (See Goodman v.

Kennedy (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer

without leave to amend if there is any reasonable possibility that the defect

can be cured by amendment"]; Kong v. City of Hawaiian Gardens Redevelopment

Agency (2002) 108 Cal.App.4th 1028, 1037 ["A demurrer should not be

sustained without leave to amend if the complaint, liberally construed, can

state a cause of action under any theory or if there is a reasonable

possibility the defect can be cured by amendment."].) The burden is on the

complainant to show the Court that a pleading can be amended successfully. (Blank

v. Kirwan (1985) 39 Cal.3d 311, 318.)

The court may, upon motion, or at any time in its

discretion, and upon terms it deems proper, strike any irrelevant, false, or

improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).)

The court may also strike all or any part of any pleading not drawn or filed in

conformity with the laws of this state, a court rule, or an order of the court.

(Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.) A motion to strike may be used to challenge a demand for relief not supported by the allegations of the pleading.

(Code Civ. Proc., § 431.10, subd. (b)(3).)

DISCUSSION

A. DEMURRER

Defendant demurs to the second, third, fifth, seventh, eighth, ninth, and tenth causes of action on the grounds that each fails to state facts sufficient to constitute each cause of action. (Code Civ. Proc., § 430.10, subd. (e).)

COA 2: Premises Liability

“The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages.” (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.) “Premises liability is grounded in the possession of the premises and the attendant right to control and manage the premises.” (Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1158, quotation marks omitted.)

A public entity is not liable for an injury arising out of an act or omission of the public entity or its employees except as provided by statute. (Gov. Code, § 815, subd. (a).) “The sole statutory basis for imposing liability on public entities as property owners is Government Code section 835.” (Cerna v. City of Oakland (2008) 161 Cal.App.4th 1340, 1347.) “To state a cause of action against a public entity under Government Code section 835 a plaintiff must plead: (1) a dangerous condition existed on the public property at the time of the injury; (2) the dangerous condition proximately caused the injury; (3) the dangerous condition created a reasonably foreseeable risk of the kind of injury sustained; and (4) the public entity had actual or constructive notice of the dangerous condition of the property in sufficient time to have taken measures to protect against the dangerous condition.” (Vedder v. County of Imperial (1974) 36 Cal.App.3d 654, 659.)

Here, Plaintiff alleges he was a special needs preschool student at San Jose Street Elementary School. (Complaint ¶¶ 2, 10-11.) LAUSD “owned, controlled, maintained, and operated San Jose Street Elementary School, including all buildings, classrooms, and playground equipment therein.” (Complaint ¶ 40.) According to his IEP, Plaintiff required specialized academic instruction, constant supervision, and behavior intervention services, and had “tendencies toward self-injury and impulsive behaviors, such as jumping from

heights.” (Complaint ¶¶ 12-13.) Plaintiff alleges LAUSD created a dangerous condition by (1) “[p]lacing classroom furniture, including chairs and bookshelves, in a manner that posed a hazard to a student with known behavioral tendencies like PLAINTIFF,” (2) “[f]ailing to secure or remove items that could foreseeably be used dangerously by PLAINTIFF given his documented behavioral profile,” (3) failing to supervise areas with “potential hazards, such as climbing structures and elevated surfaces,” and (4) failing to implement safety protocols for special needs students. (Complaint ¶ 43.) Plaintiff alleges this condition caused injuries when he: (1) “jumped from a chair and hit his head on a bookshelf,” (2) “climbed and jumped from a cube chair, fracturing his arm,” and (3) “fell on playground equipment and injured his ear.” (Complaint ¶ 44.)

Plaintiff alleges LAUSD had actual and constructive notice through Plaintiff’s IEP, prior incidents involving Plaintiff’s behaviors at school, and the knowledge of LAUSD employees and agents. (Complaint ¶ 45.)

The Court finds Plaintiff does not sufficiently plead a dangerous condition of public property. “A dangerous condition exists when public property ‘is physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself,’ or possesses physical characteristics in its design, location, features or relationship to its surroundings that endanger users.” (Cerna, supra, 161

Cal.App.4th at pp. 1347-1348.) "A lack of human supervision and protection is not a deficiency in the physical characteristics of public property." (Id. at p. 1352.) Thus, Plaintiff's theories based on failure to supervise or failure to implement safety protocols do not state a dangerous condition claim. Plaintiff's remaining theories based on classroom furniture, bookshelves, chairs, climbing structures, elevated surfaces, and playground equipment are also insufficient. Plaintiff does not identify what physical feature or property characteristic made the chair, cube chair, bookshelf, or apparatus dangerous when used with due care. "[A] claim alleging a dangerous condition may not rely on generalized allegations but must specify in what manner the condition constituted a dangerous condition." (Brenner v. City of El Cajon (2003) 113 Cal.App.4th 434, 439-440.) Plaintiff's notice allegations likewise concern Plaintiff's IEP, behavioral tendencies, and need for constant supervision, not LAUSD's notice of a dangerous condition in the property itself. (Complaint ¶ 45.)

The demurrer is SUSTAINED as to the second cause of action, with 20 days leave to amend.

COA 3: Negligent Hiring, Training, Supervision, and Retention

The elements of a cause of action for negligent hiring,

retention, or supervision are: (1) the employer's hiring, retaining, or supervising an employee; (2) the employee was incompetent or unfit; (3) the employer had reason to believe undue risk of harm would exist because of the employment; and (4) harm occurs. (*Evan F. v. Hughson United Methodist Church* (1992) 8 Cal.App.4th 828, 836-837.)

A school district may be directly or "vicariously liable under section 815.2 for the negligence of administrators or supervisors in hiring, supervising and retaining" employees. (*C.A. v. William S. Hart Union High Sch. Dist.* (2012), 53 Cal. 4th 861, 879; *D.Z. v. Los Angeles Unified Sch. Dist.* (2019) 35 Cal. App. 5th 210, 230 ("appellant had to prove both that Shelburne posed a risk of harm to students and that the risk of harm was reasonably foreseeable, i.e., that LAUSD knew or should have known of the risk.") "While school districts and their employees have never been considered insurers of the physical safety of students, California law has long imposed on school authorities a duty to 'supervise at all times the conduct of the children on the school grounds and to enforce those rules and regulations necessary to their protection.'" (Id. at p. 869, quoting *Dailey v. Los Angeles Unified School Dist.* (1970) 2 Cal.3d 741, 747.) "Either a total lack of supervision [citation] or ineffective supervision [citation] may constitute a lack of ordinary care on the part of those responsible for student

supervision.” (Ibid.) “Under section 815.2, subdivision (a) of the

Government Code, a school district is vicariously liable for injuries

proximately caused by such negligence.” (Ibid.)

Here, Plaintiff alleges LAUSD and IABA had a duty to

exercise reasonable care in hiring, training, supervision, and retention,

“particularly those responsible for supervising special needs students like

PLAINTIFF.” (Complaint ¶ 49.) Plaintiff alleges LAUSD and IABA “knew or should

have known that their employees, including DOES 1-50, lacked the proper

training, supervision, and competence to properly care for PLAINTIFF, a student

with autism and other special needs who required constant supervision.” (Complaint

¶ 51.) Plaintiff alleges the negligent acts included (1) “[f]ailing to

adequately train staff on proper supervision protocols for special needs

students,” (2) “[f]ailing to train staff on appropriate responses to the

behaviors of autistic students like Plaintiff,” (3) “[f]ailing to properly

supervise staff to ensure they were providing the required level of care and

supervision,” (4) “[f]ailing to implement appropriate coverage protocols during

staff breaks and transitions,” (5) “[f]ailing to ensure that staff understood

and complied with PLAINTIFF’s IEP requirements,” and (6) “[f]ailing to

discipline or retain staff, including Defendant CAMPBELL, after incidents

involving inadequate supervision.” (Complaint ¶ 52.) Plaintiff alleges this

negligent hiring, training, supervision, and retention “directly and proximately caused PLAINTIFF’s injuries on the DATES OF INJURY.” (Complaint ¶ 53.)

LAUSD argues Plaintiff fails to plead a negligent hiring, training, supervision, and retention claim because William S. Hart is limited to sexual abuse cases and Plaintiff does not allege sexual abuse by an LAUSD employee. The Court disagrees. William S. Hart recognizes liability under Government Code section 815.2 for negligent hiring, supervision, and retention by school administrators and supervisors. Courts have applied William S. Hart and Government Code section 815.2 in cases not involving sexual abuse. (See *Regents of University of California v. Superior Court* (2018) 4 Cal.5th 607, 620 [university duty to protect students from foreseeable violence during curricular activities]; *E.I. v. El Segundo Unified School Dist.* (2025) 111 Cal.App.5th 1267, 1279 [negligent supervision and training claims arising from student bullying]; *Jimenez v. Roseville City School Dist.* (2016) 247 Cal.App.4th 594, 603 [negligent supervision claim arising from student injury while doing flips at school].) For the first time in reply, LAUSD argues Plaintiff does not allege that a LAUSD supervisory or administrative employee knew or had reason to know of a particular employee’s unfitness or incompetence. Even if

considered, Plaintiff alleges Does 1 through 100 included administrators, employees, agents, and representatives of LAUSD tasked with supervising or ensuring Plaintiff's safety, LAUSD administrators and employees had notice that Plaintiff required assistance at all times, and LAUSD knew or should have known its employees lacked the training, supervision, and competence needed to care for Plaintiff. (Complaint ¶¶ 6, 14, 51-52.) At the pleading stage, these allegations are sufficient.

The demurrer is OVERRULED as to the third cause of action.

COAs 5 and 7: Negligence Per Se and Violation of the Unruh Civil Rights Act

Plaintiff does not oppose the demurrer to the fifth and seventh causes of action and states he has abandoned both causes of action. The demurrer is SUSTAINED as to the fifth and seventh causes of action, without leave to amend.

COA 8: Violation of Civil Code Section 54.3

Under Civil Code section 54, "[i]ndividuals with disabilities or medical conditions have the same right as the general public to the full and free use of the streets, highways, sidewalks, walkways, public buildings, medical facilities, including hospitals, clinics, and physicians' offices, public facilities, and other public places." Section 54.1 provides that "[i]ndividuals

with disabilities shall be entitled to full and equal access, as other members of the general public, to accommodations, advantages, facilities... and privileges of... places of public accommodation... and other places to which the general public is invited.” Section 54.3 creates a cause of action against an entity who interferes with these rights. “The purpose of section 54.3, however, is not to provide a cause of action for disabled persons who have suffered physical injury but to persons who have been denied the same access to public facilities as persons without a disability.” (Urhausen v. Longs Drug Stores California, Inc. (2007) 155 Cal.App.4th 254, 264.)

Here, Plaintiff alleges “[p]ublic schools are public facilities and places of public accommodation within the meaning of Civil Code §§54 and 54.1.” (Complaint ¶ 89.) Plaintiff alleges he is “an individual with disabilities within the meaning of Civil Code §§54 and 54.1, as he has autism spectrum disorder, is nonverbal, and requires accommodations to access educational services.” (Complaint ¶ 90.) Plaintiff alleges Defendants denied him “full and equal access to public facilities and accommodations” by (1) “[f]ailing to provide the accommodations required by his IEP,” (2) “[f]ailing to ensure PLAINTIFF had the supervision necessary for his safe use and enjoyment of school facilities,” (3) “[f]ailing to implement appropriate safety protocols that would allow PLAINTIFF to safely access all areas of the school,” and (4) “[f]ailing

to provide the services necessary for PLAINTIFF to safely participate in educational activities." (Complaint ¶ 91.) Plaintiff alleges "[t]his denial of access directly resulted in PLAINTIFF's injuries on September 25, 2024, September 27, 2024, and November 8, 2024." (Complaint ¶ 92.)

Plaintiff does not oppose the demurrer on this ground. The

Court acknowledges that Civil Code section 54.1 applies to policy impediments

as well as structural impediments. (Hankins v. El Torito Restaurants, Inc.

(1998) 63 Cal.App.4th 510, 524.) However, Plaintiff must still allege facts

showing a denial of, or interference with, admittance to or enjoyment of public

facilities, or full and equal access to accommodations, advantages, facilities,

or privileges within the meaning of Civil Code sections 54, 54.1, and 54.3.

The Court finds the Complaint does not sufficiently plead

such a denial or interference. The allegations concern failure to implement

IEP-required supervision, failure to provide safety protocols, and resulting

physical injuries. (Complaint ¶¶ 91-93.) Plaintiff does not identify how

Plaintiff was denied admittance to or enjoyment of a public facility, or how

his access to school facilities or accommodations was denied or interfered

with, as opposed to alleging that he was injured because required supervision

and services were not provided.

The demurrer is SUSTAINED as to the eighth cause of action,

with 20 days leave to amend.

COA 9: Disability Discrimination in Violation of

Education Code Section 220

California Education Code section 220 provides that “[n]o

person shall be subjected to discrimination on the basis of disability...in any

program or activity conducted by an educational institution that receives, or

benefits from, state financial assistance, or enrolls pupils who receive state

student financial aid.” A private right of action for damages under this

section attaches when the educational institution has, among other elements,

“actual knowledge” of discrimination and has acted with “deliberate indifference”

in the face of such knowledge. (*Donovan v. Poway Unified School Dist.*

(2008) 167 Cal.App.4th 567, 597.)

Here, Plaintiff alleges LAUSD “is an educational institution

that receives and benefits from state financial assistance.” (Complaint ¶ 98.)

Plaintiff alleges he “is a person with a disability within the meaning of

Education Code §220, as he has autism spectrum disorder, is nonverbal, and

requires accommodations to access educational services.” (Complaint ¶ 99.)

Plaintiff alleges Defendants discriminated against him by (1) “[f]ailing to

provide the level of supervision required by his IEP,” (2) “[f]ailing to ensure

proper coverage during staff breaks,” (3) “[f]ailing to implement appropriate

safety protocols specifically needed for a student with PLAINTIFF's disabilities," and (4) "[t]reating PLAINTIFF differently than non-disabled students by not providing the accommodations necessary for his safe access to education." (Complaint ¶ 100.) Plaintiff alleges "[t]his discrimination denied PLAINTIFF full and equal access to the educational programs and activities provided by Defendants to other students." (Complaint ¶ 101.) Plaintiff also alleges LAUSD school nurses, administrators, and employees "were instructed to and had notice that PLAINTIFF was to be assisted at all times while attending San Jose Street Elementary." Plaintiff further alleges Defendants failed to implement supervision coverage protocols "[d]espite being aware of PLAINTIFF's supervision requirements and the consequences of inadequate supervision." (Complaint ¶¶ 14, 25.)

LAUSD argues the Complaint does not plead facts sufficient to show actual knowledge of discrimination or deliberate indifference. The Court agrees. Plaintiff alleges LAUSD knew of Plaintiff's disability, IEP, and need for constant supervision. (Complaint ¶¶ 12-14, 25.) However, those allegations do not, without more, plead that LAUSD had actual knowledge of disability discrimination against Plaintiff and acted with deliberate indifference to that discrimination. The pleaded facts support Plaintiff's theory that LAUSD failed to provide required supervision and safety measures, but they

do not sufficiently allege that LAUSD knew Plaintiff was being denied access to educational programs or activities because of his disability and deliberately failed to respond.

The demurrer is SUSTAINED as to the ninth cause of action, with 20 days leave to amend.

COA 10: Breach of Mandatory Duty

“Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.”

(Gov. Code, § 815.6.)

Pursuant to Government Code section 815.6, a public entity

“may be liable when (1) a mandatory duty is imposed by enactment, (2) the duty was designed to protect against the kind of injury allegedly suffered, and (3) breach of the duty proximately caused injury.” (State Dept. of State

Hospitals v. Superior Court (2015) 61 Cal.4th 339, 348.)

Here, Plaintiff identifies Education Code sections 56345,

56363, 56500.2, and 44807, and 34 C.F.R. section 300.323(c)(2). (Complaint ¶

106.) Plaintiff alleges his IEP “explicitly required Behavior Intervention

Implementation (BII) services for 1,350 minutes per week as a related service necessary for PLAINTIFF to benefit from his education," and that "[t]his requirement created a mandatory duty for LAUSD to ensure that these services were provided as specified." (Complaint ¶ 107.) Plaintiff alleges LAUSD breached those duties by (1) "[f]ailing to ensure that PLAINTIFF received the BII services required by his IEP," (2) "[a]llowing PLAINTIFF's BII provider to take breaks without ensuring proper supervision coverage," (3) "[f]ailing to implement the behavioral support described in PLAINTIFF's IEP," and (4) "[f]ailing to hold staff accountable for properly supervising PLAINTIFF as required by his IEP." (Complaint ¶ 108.) Plaintiff alleges these "mandatory duties" were designed to protect special needs students from "injuries resulting from inadequate supervision and implementation of required supports," and that the breach caused physical injuries, pain and suffering, emotional distress, and medical expenses. (Complaint ¶¶ 109-110.)

LAUSD argues the Complaint fails to identify an enactment imposing a mandatory duty. The Court agrees. The Court is not persuaded that the cited enactments provide a basis for application of Government Code section 815.6. (Ed. Code, § 56345 [IEP contents and legislative intent regarding services in IEP]; Ed. Code, § 56363 [definitions of designated instruction and services and related services]; Ed. Code, § 56500.2 [department investigation

of IDEA complaints]; Hoff v. Vacaville Unified School Dist. (1998) 19

Cal.4th 925, 939 [section 44807 does not impose a mandatory duty more broadly

on a public entity]; 34 C.F.R. § 300.323(c)(2) [special education and related

services to be made available in accordance with the child's IEP].) An

obligation to act, without a specific mandate on how to implement the

obligation, or that failure to implement will result in Plaintiff's specific

injury, is insufficient to impose a mandatory duty. (See O'Toole v.

Superior Court (2006) 140 Cal.App.4th 488, 510 ["A statute is deemed to

impose a mandatory duty on a public official only if the statute affirmatively

imposes the duty and provides implementing guidelines."].)

The demurrer is SUSTAINED as to the tenth cause of action,

with 20 days leave to amend.

B. MOTION TO STRIKE

In light of the Court's ruling sustaining the seventh cause

of action without leave to amend and sustaining the eighth and ninth causes of

action with leave to amend, the motion to strike is DENIED as moot as to

paragraph 84 and prayer for relief paragraphs 3 and 8 to the extent they seek

relief under Civil Code section 52, paragraph 94 and prayer for relief

paragraphs 4 and 8 to the extent they seek relief under Civil Code section

54.3, and paragraph 103 and prayer for relief paragraph 8 to the extent they

seek attorney's fees under Education Code section 262.4.

CONCLUSION

The demurrer is SUSTAINED as to the second, eighth, ninth,
and tenth causes of action, WITH 20 days leave to amend.

The demurrer is SUSTAINED as to the fifth and seventh causes
of action, without leave to amend.

The demurrer is OVERRULED as to the third cause of action.

The motion to strike is DENIED as moot.